

		In <i>Sheen</i>, the court held that tort claims for monetary losses between contractual parties are barred by the economic loss rule when they arise from or are not independent of the parties’ underlying contracts. (<i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 922, 923-925). However, the <i>Sheen</i> Court acknowledged the “recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services.” (<i>Id.</i> at 933.) Under the factors considered in <i>North American Chemical</i>, the court does not find that the economic loss rule bars a negligent repair cause of action. The demurrer to the fifth cause of action is overruled. Moving Defendants to give notice.
7	Cvejkus vs. Volkswagen Group of America, Inc.	Notices of Withdrawal of Motion (ROA 90, ROA 88, ROA 82, and ROA 80)
8	Qazi vs. Avenue One Community Association, Inc.	<u>Motion to Be Relieved As Counsel of Record is off calendar</u> The Request for Dismissal of Entire Action was filed 06/26/2026.
9	Cunningham vs. FCA US LLC	Defendant FCA US, LLC’s Demurrer to Plaintiffs’ First Amended Complaint is OVERRULED. Defendant’s Motion to Strike Plaintiffs’ Claim for Punitive Damages in First Amended Complaint is DENIED. <u>Demurrer</u> <u>Breach of the Implied Warranty of Merchantability</u> “The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.” (Civ. Code, § 1791.1, subd. (c).) However, the duration provision of the Song-Beverly Act does not bar “an action for breach of the implied warranty of merchantability when the purchaser fails to discover and report the defect to the seller within the time period specified in that provision.” Instead, and “particularly in light of the consumer protection policies supporting the Song-Beverly Act, ... the statute merely creates a limited, prospective duration for the implied warranty of merchantability; it does not create a deadline for discovering